

3. DRAWBACKS UNDER SECOND AND THIRD SCHEDULES OF THE FINANCE ACT, 1901.

Article.	Reduced Rate.	Present Rate.
Drawback to be allowed to a refiner on molasses produced in Great Britain or Ireland, and delivered by him to a licensed distiller for use in the manufacture of spirits - - the cwt.	£ s. d. 0 0 5	£ s. d. 0 1 0
Other drawbacks -	According to the amount of duty paid at the reduced rate.	According to the amount of duty paid at the present rate.

4. ALLOWANCE UNDER SECTION 1 (2) OF THE REVENUE ACT, 1903.

	£ s. d.	£ s. d.
Allowance to a refiner on molasses - the cwt.	0 0 5	0 1 0

CHAPTER 17.

An Act to legalise the use of Cran and Quarter Cran Measures in connexion with trading in Fresh Herrings in England and Wales. [1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

in or
quarter cran
measure.

35 Geo. 3. c. 94.

1.—(1) In any place in which this Act is in force, any person buying, selling, delivering, or receiving fresh herrings shall be entitled to use for the purpose thereof the measure known as the cran, being a measure the content or capacity of which is determined by regulations made under section thirteen of the Herring Fishery (Scotland) Act, 1815, or a quarter cran measure being a measure of such capacity that four times its content when filled with herrings shall be equal to one cran.

(2) A cran or quarter cran measure shall be made in the prescribed manner of wood or of such other material as may be prescribed, and shall be branded or otherwise marked by an inspector of weights and measures in the prescribed manner.

(3) Subject to the provisions of this Act cran and quarter cran measures so made and marked as aforesaid shall be the only legal measures for use in buying, selling, delivering, or receiving fresh herrings in any place in which this Act is in force; and any person using or having in his possession in any

such place for any such purpose any box, basket, or other measure not so made and marked (except as herein-after provided) shall, on summary conviction, be liable to a fine not exceeding five pounds for the first offence, and not exceeding twenty pounds for the second or any subsequent offence; and also to the forfeiture of the measure, and any bargain, contract, sale, or dealing made by such a measure shall be void:

Provided that nothing in this section shall prevent the sale of herrings by weight, or number, or in bulk.

2.—(1) Where this Act is in force the local authority shall fix the times and places within their district at which an inspector of weights and measures is to attend for the purpose of the verification of the cran or quarter cran measures; and the inspector shall then and there examine in the prescribed manner every such measure brought to him for the purpose of verification, and, if he find the same to be correctly made in the prescribed manner, shall brand or otherwise mark it in the prescribed manner, but a cran or quarter cran measure shall not be liable to be re-marked because used in any place other than that in which it was originally marked.

Verification of measures.

(2) If any inspector of weights and measures brands or otherwise marks a cran or quarter cran measure in contravention of this Act or regulations made thereunder, or without duly verifying it in the prescribed manner, or is guilty of a breach of any duty imposed on him by or under this Act, or otherwise misconducts himself in the execution of his powers under this Act, he shall be liable, on summary conviction, to a fine not exceeding five pounds for each offence.

3.—(1) An inspector of weights and measures, if authorised in writing by a justice of the peace, may at all reasonable times inspect all cran and quarter cran measures within his jurisdiction which are used or are in the possession of any person or on any premises for use for trade in fresh herrings, and may seize and detain any measure which is liable to be forfeited in pursuance of this Act, and may for the purpose of such inspection enter any place, whether a building or a vessel or in the open air, whether open or enclosed, where he has reasonable cause to believe that there is any measure which he is authorised by this Act to inspect.

Powers of inspection and entry, &c.

(2) Any person who neglects or refuses to produce for such inspection all such measures as aforesaid in his possession or on his premises, or refuses to permit the officer to examine them or any of them, or obstructs the entry of the officer under this section, or otherwise obstructs or hinders an officer acting under this section, shall be liable on summary conviction to a fine not exceeding five, or in the case of a second or subsequent offence ten, pounds.

4. An inspector of weights and measures may take in respect of the verification and marking of a measure under this Act such

Fees for marking.

fees as may be specified by Order in Council and no others, and he shall, at such times, not less than once a quarter, as the local authority direct, account for and pay over to the local authority, or as they direct, all fees so taken.

Forgery of
marks.

5.—(1) If any person forges or counterfeits any brand or other mark used for marking cran or quarter cran measures under this Act, or wilfully increases or diminishes the capacity of any such measure, he shall be liable, on summary conviction, to a fine not exceeding fifty pounds.

(2) If any person knowingly uses, sells, utters, disposes of, or exposes for sale any such measure with such forged or counterfeit mark thereon, or any such measure so increased or diminished, he shall be liable, on summary conviction, to a fine not exceeding ten pounds.

(3) All such measures with any such forged or counterfeit mark thereon shall be forfeited.

(4) For the purposes of this section any person who removes a mark from any such measure and inserts the same into another such measure shall be deemed to forge or counterfeit a mark within the meaning of this section.

Use of Scotch
cran measures
in England,
and vice versa.
52 & 53 Vict.
c. 23.
54 & 55 Vict.
c. 23.

6. Cran and quarter cran measures made and marked under and in accordance with section four of the Herring Fishery (Scotland) Act, 1889, and the branding of Herrings (Northumberland) Act, 1891, shall be legal measures for use in buying, selling, delivering, or receiving fresh herrings in any place in which this Act is in force, and measures made and marked under and in accordance with this Act shall be legal measures for use in the Scotch herring fishery and in any area to which the powers of the Fishery Board for Scotland extend under the Branding of Herrings (Northumberland) Act, 1891.

Provision for
Northumber-
land.

7. If this Act is put in force in any part of the area to which the Branding of Herrings (Northumberland) Act, 1891, applies, the powers of the Fishery Board for Scotland, and of their officers under that Act, shall cease to be exerciseable in that part so far as concerns the marking of or otherwise dealing with cran or quarter cran measures.

Regulations by
Board of Agri-
culture and
Fisheries.

8. For the purposes of this Act, the Board of Agriculture and Fisheries may, as regards cran and quarter cran measures, make regulations with respect to any matter which under this Act may be prescribed, and any matter with respect to which the Board of Trade may make general regulations under the Weights and Measures Acts, 1878 to 1904, subject, however, to the conditions applicable to the making of such regulations.

Legal pro-
ceedings.

9.—(1) Such portion of any fine under this Act, not exceeding a moiety, as the court of summary jurisdiction before whom a person is convicted under this Act think fit to direct may, if the court in their discretion so order, be paid to the

informer, unless the informer is an inspector of weights and measures.

(2) All measures forfeited under this Act shall be broken up, and the materials thereof may be sold or otherwise disposed of as a court of summary jurisdiction direct, and the proceeds of the sale shall be applied in like manner as fines under this Act.

(3) A person shall not be liable to any increased penalty for a second offence under any section of this Act unless that offence was committed after conviction within five years previously for an offence under the same section.

(4) Where a person is convicted under any section of this Act of an offence and the court by which he is convicted is of opinion that the offence was committed with intent to defraud, he shall be liable, in addition to or in lieu of any fine, to be imprisoned with or without hard labour for a term not exceeding two months.

(5) Where any cran or quarter cran measure is found in the possession of any person carrying on trade in fresh herrings, or on the premises of any person which, whether a building or a vessel or in the open air, whether opened or enclosed, are used for trade in fresh herrings, that person shall be deemed for the purposes of this Act, until the contrary is proved, to have the measures in his possession for use for trade in fresh herrings.

(6) Any person who feels himself aggrieved by a conviction or order of a court of summary jurisdiction under this Act may appeal to quarter sessions.

(7) An inspector of weights and measures may, with the consent of the local authority, prosecute any proceedings arising under this Act or in the discharge of his duties as such inspector.

10. The local authority, for the purposes of this Act, shall be the local authority for the purposes of the Weights and Measures Acts, 1878 to 1904, and the expenses incurred by such a local authority under this Act shall be defrayed as expenses of the authority under those Acts, and two or more local authorities may combine for the purposes of this Act in like manner as for the purposes of those Acts, and for the purposes of this Act the jurisdiction of a local authority shall extend to the sea adjoining their district and within the exclusive fishery limits of the British Islands. Local authorities.

11.—(1) The Board of Agriculture and Fisheries may on the application of a local authority in England or Wales, by order to be published in such manner as the Board direct, declare this Act to be in force in the district of the local authority, or any part thereof, including the sea adjoining that district or part, and within the exclusive fishery limits of the British Islands. Application of Act.

(2) The local authority shall two weeks at least before applying for an order give notice of their intention to make such an application by advertising once, at least, in each of two successive weeks in one or more newspapers circulating in their district,

and no order shall be made under this section until proof of such advertisement has been given to the satisfaction of the Board and until one month has elapsed after the date of the latest advertisement.

Short title.

12. This Act may be cited as the Cran Measures Act, 1908.

CHAPTER 18.

An Act to continue various Expiring Laws.

[1st August 1908.]

WHEREAS the Acts mentioned in Part I. of the Schedule to this Act are, in so far as they are in force and are temporary in their duration, limited to expire on the thirty-first day of December nineteen hundred and eight:

And whereas the Act mentioned in Part II. of the Schedule to this Act is, to the extent aforesaid, limited to expire on the tenth day of August nineteen hundred and eight:

And whereas it is expedient to provide for the continuance as in this Act mentioned of those Acts, and of the enactments amending or affecting the same:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Continuance
of Acts in
Schedule.

1.—(1) The Acts mentioned in the Schedule to this Act, shall, to the extent specified in column three of that Schedule, be continued until the thirty-first day of December nineteen hundred and nine, and shall then expire, unless further continued.

(2) Any unrepealed enactments amending or affecting the enactments continued by this Act shall, in so far as they are temporary in their duration, be continued in like manner, whether they are mentioned in the schedule to this Act or not.

Short title.

2. This Act may be cited as the Expiring Laws Continuance Act, 1908.

SCHEDULE.

PART I.

Section 1.

1. Session and Chapter.	2. Short Title.	3. How far continued.	4. Amending Acts.
(1.) 3 & 4 Vict. c. 89.	The Poor Rate Exemption Act, 1840.	The whole Act.	—